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Case Number: 25SMCV01199 Hearing Date: September 11, 2026 Dept: P

Tentative

Ruling

Khalid

J. Patterson v. Amazon.com Services, Case No. 25SMCV01199

Amazon.com

Services' Motion for Summary Judgment

Hearing

Date: September 11, 2026

Background

Plaintiff

Khalid J. Patterson ("Patterson") sues Defendant Amazon.com Services ("Amazon") for wrongful termination, retaliation, unlawful withholding of final wages, and discrimination. Patterson alleges that between August 2020 and March 2024, Amazon employed him as a Senior Program Manager on its Prime Video Live Sports team. (First Amended Complaint, ¶ 5.) Patterson alleges that this job required extensive travel for roughly eighteen weeks per year, during which time he regularly submitted requests for reimbursement. (Id. at ¶ 7.) Patterson alleges that in February 2024, Amazon suddenly audited his past reimbursement requests and Patterson complied with the audit. (Id. at ¶ 10.) Patterson alleges that approximately one month later, Amazon demanded repayment of \$18,741.08 in alleged overpayments. (Id. at ¶ 11.) Patterson alleges that when he asked for an accounting or explanation of the allegations, Amazon fired him. (Id. at ¶ 12.) Patterson alleges that Amazon delivered his paycheck one day late. (Id. at ¶

14.) Patterson also alleges that four of the eight Black male employees on the Prime Video Live Sports team were terminated or subjected to performance improvement plans that resulted in their removal from the team, and that non-Black employees did not experience the same level of scrutiny. (Id. at ¶ 18.)

On March
10, 2025, Patterson filed the complaint.

On April
17, 2025, Patterson filed the First Amended Complaint (“FAC”), the operative pleading.

On July
30, 2025, the parties filed a stipulated protective order.

On May 5, 2025,
and May 8, 2025, the Court held informal discovery conferences regarding Plaintiff’s deposition and several outstanding discovery requests concerning the audit.

On June 6,
2026, Amazon filed this Motion for Summary Judgment and Motion to file documents under seal. On August 20, 2026, Patterson filed oppositions to both motions. On August 31, 2026, Amazon replied.

Arguments

Amazon
begins by arguing that Plaintiff’s discrimination claim fails because its audit policies have no disparate impact on Black employees on the Prime Video Live Sports team. (Motion for Summary Judgment (“MSJ”), p. 18.) Next, Amazon argues that Patterson’s whistleblower retaliation claim fails because he cannot show that he engaged in protective activity under Labor Code § 98.6 and because his fraudulent expense reporting caused his termination, not any protected activity. (Id. at p. 20.) Then, Amazon argues that Patterson’s wrongful termination claim fails because he cannot establish that he was subject to wrongful discrimination or retaliation. (Id. at ¶ 25.) Next, Amazon argues that Patterson’s claim for unlawful setoff/withholding fails because Amazon included the one day of waiting time penalties in Patterson’s final check. (Id. at p.

29.) Finally, Amazon argues that Patterson's claim for punitive damages fails because personnel management is not a legal basis for punitive damages. (Id. at p. 29.)

In opposition, Patterson argues that his wrongful termination claim survives because his discrimination and retaliation claims survive. (Opposition, pp. 5-6.) Patterson argues that his retaliation claim under Labor Code § 98.6 is based on Amazon's failure to reimburse him for necessary business expenses. (Id. at p. 8.) Patterson argues that irregularities his expense reports did not support Amazon's finding that Patterson submitted fraudulent expense reports. (Id. at p. 9.) In support of his discrimination claim, Patterson contends that the disparate impact occurred because of the audit/termination process that he was subjected to and requests additional discovery under Code Civ. Proc. § 437(h) to rebut Amazon's statistics. (Id. at p. 16.) Finally, Patterson argues that he can recover punitive damages on this action because his wrongful termination claim sounds in tort. (Id. at p. 18.)

In reply,

Amazon argues that Patterson concedes that his wrongful termination claim fails if his retaliation claim fails. Amazon argues that the retaliation claim fails because there is no causal link between Plaintiff's request for reimbursement and his termination because Amazon decided to terminate him before he requested clarification of the expenses Amazon flagged as fraudulent. (Reply, p. 5.) Amazon argues that the multiple stages of its investigation and decision to terminate Patterson's employment were ordinary process and not evidence of indecision on the issue. (Id. at p. 6.) Amazon argues that it provided clear and convincing evidence that Plaintiffs' termination was based on a violation of company policy and that the differing figures in the repayment requested were the result of ongoing audit reconciliation. (Id. at p. 7.) Amazon argues that the third claim for unlawful setoff/withholding fails because Patterson does not have unreimbursed expenses. Amazon argues that punitive damages are unavailable as a matter of law. (Id. at p. 8.)

Request
for Judicial Notice

Amazon
requests notice of "Exhibit 1: A true and correct copy of the State of California Department of Industrial Relations' Waiting Time Penalty FAQs, which

is available on the State of California Department of Industrial Relations website at https://www.dir.ca.gov/dlse/FAQ_WaitingTimePenalty.htm." (Request for Judicial Notice, p. 2.)

Notice is
GRANTED.

Legal
Standard- Motion for Summary Judgment

Summary
judgment or adjudication is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law."
(Code Civ. Proc. §437c(c).) The
moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

On a
motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical
Examiners (1974) 11 Cal.3d 1, 21.) Once the moving party has discharged its burden as to a particular cause of action, however, the opposing party may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action.¿ (Id. at §437c(p)(2).)¿

"When
the motion for summary judgment is supported by affidavits sufficient to sustain the motion,...the burden of showing that triable issues exist shifts to the party opposing the motion. [Citation.] A party cannot avoid summary judgment based on mere speculation and conjecture...but instead must produce admissible evidence raising a triable issue of fact. (Crouse v.
Brobeck, Phleger & Harrison (1998) 67 Cal.App.4th 1509, 1524.)

Separate
Statement

Amazon's

initial separate statement in support of this motion was 348 pages. The reply separate statement was 407 pages. By comparison, Amazon's compendium of evidence was only 232 pages. The purpose of a separate statement is to “to permit the trial court to focus on whether [the material] facts are truly undisputed.” [citation] This can only be accomplished by both parties preparing the separate statement according to the statute and Rules of Court and acting in good faith. . . . It is difficult to conceive of a properly drafted separate statement that includes over 600 paragraphs of undisputed material facts. Trial courts should not hesitate to deny summary judgment motions when the moving party fails to draft a compliant separate statement – and an inappropriate separate statement includes an overly long document that includes multiple nonmaterial facts in violation of the Rules of Court.” (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 876.)

Amazon has

taken every single sentence in its statement of facts in its memorandum of points and authorities and converted it into an “undisputed material fact,” regardless of the factual content of the sentence. For example, UMF 33 is a hypothetical expense that Amazon’s internal system, Dexter, might not immediately flag: “For example, an employee may submit a fraudulent expense of \$35.00 for Trader Joe’s . . .” Though this example has a place in a memorandum of points and authorities, it does not belong in the separate statement.

Were the

material facts of this case actually in dispute, the length and impenetrability of the separate statement would be grounds for denying this motion outright. (See Beltran, supra, 97 Cal.App.5th at 876.) Because the facts of this case are straightforward, and the only real dispute concerns when exactly Amazon decided to fire Patterson, the Court will hear this motion. Nevertheless, Amazon’s attorneys are cautioned regarding inappropriate gamesmanship in the process of preparing a separate statement of material facts.

Discussion

Before

reaching the merits of this motion, the Court wishes to make clear that its findings on this motion do not evaluate Patterson's claim that Amazon incorrectly determined that his expense reports were fraudulent because that is

not an element of any of his claims against Amazon. The Court reviews the parties' evidence only to determine if there is a triable factual dispute on any of Patterson's claims.

There

is no triable issue of fact on Patterson's discrimination claim

"In

'disparate treatment' cases, the plaintiff alleges that an employer has treated him or her less favorably than others due to race, color religion, sex or national origin, and the plaintiff must prove a discriminatory intent or motive

. . . In

"'disparate impact' cases, by contrast, the plaintiff alleges and proves, usually through statistical disparities, that facially neutral employment practices adopted without a deliberately discriminatory motive nevertheless have such significant adverse effects on protected groups that they are 'in operation ... functionally equivalent to intentional discrimination.'"(Harris v. Civil Service Comm. (1998) 65 Cal.App.4th 1356, 1365.) In a disparate impact case, a plaintiff must identify the facially neutral employment practice that causing the alleged disparate impact and "offer statistical evidence of a kind and degree sufficient to show that the practice in question has caused the exclusion of applicants for jobs or promotions because of their membership in a protected group." (Jumaane v. City of Los Angeles (2015) 241 Cal.App.4th 1390.)

a.

Patterson

has standing to bring a disparate impact claim based on Amazon's expense audit enforcement system, as applied to the Prime Video Live Sports team.

This is a

disparate impact case. (FAC, ¶ 30.) Amazon contends that Patterson does not identify a specific employment policy leading to a disparate outcome and does not have standing to bring a claim based on a practice he did not experience. In opposition, Patterson clarifies that his discrimination theory is based on the expense audit enforcement system within the Prime Video Live Sports team. (Patterson Decl., ¶¶ 2-16; Reply Separate Statement ("RSS"), No. 83.) It is undisputed that Patterson was terminated through that system, so he has standing to challenge the disparate impact of Amazon's expense audit enforcement system within the Prime Video Live Sports team.

b.

Patterson

does not show a triable issue of fact as to the disparate impact of Amazon's expense audit enforcement system in the Prime Video Live Sports team

Amazon

submits evidence that expense audits in the Prime Video Live Sports team between 2022 and 2024 did not have a disparate impact on Black employees. (Girnius Decl.; ¶ 4.) Out of 112 employees on the Prime Video Live Sports team, there were fifteen Black employees: fourteen self-identified as Black, and one employee indicated that they were mixed-race and part Black. (Id. at ¶ 7.) Eighteen employees on the Prime Video Live Sports team were audited, only two of whom were Black. Of the two Black employees audited, one was involuntarily terminated. (Id. at ¶ 13.) Amazon's statistical expert found this data to indicate no statistically significant difference in the expense audit's impact on non-Black and Black employees. (Id. at ¶ 4.)

Amazon has

met its burden of showing that there is no evidence of the expense audit system's disparate impact on Black employees on the Prime Video Live Sports team. The burden shifts to Patterson to show a triable issue of fact as to the disparate impact of the expense audit system on Black employees on the Prime Video Live Sports team.

In

opposition, Patterson requests a continuance under CCP § 437(h) to seek additional discovery responses showing the disparate impact but makes no showing that the information he seeks will show a statistically significant disparate impact on Black employees on the Prime Video Live Sports team. Patterson primarily seeks unidentified additional documents and to depose three individuals involved in his termination. (See Patterson Decl. pursuant to CCP § 437(h), ¶¶ 25-27.) Patterson does not explain what data the additional documents would contain that would show a statistically significant difference and create a triable issue of fact. Patterson's request for a continuance under CCP § 437(h) is therefore denied.

Patterson

presents no additional evidence of a disparate impact on Black employees. Therefore, he does not meet his burden to show a triable issue of fact on his

discrimination claim.

There

is no triable issue of fact on Patterson's Retaliation claim under Labor Code § 98.6

"A person

shall not discharge an employee or in any manner discriminate, retaliate, or take any adverse action against any employee or applicant for employment because the employee or applicant engaged in any conduct delineated in this chapter, including the conduct described in subdivision (k) of Section 96, and Chapter 5 (commencing with Section 1101) of Part 3 of Division 2, or because the employee or applicant for employment has filed a bona fide complaint or claim or instituted or caused to be instituted any proceeding under or relating to their rights that are under the jurisdiction of the Labor Commissioner, made a written or oral complaint that they are owed unpaid wages, or because the employee has initiated any action or notice pursuant to Section 2699, or has testified or is about to testify in a proceeding pursuant to that section, or because of the exercise by the employee or applicant for employment on behalf of themselves or others of any rights afforded them." (Labor Code § 98.6 (a).)

a.

Patterson

has standing to bring a retaliation claim because he engaged in protected activity.

Amazon

contends that Patterson did not engage in any protected activity that would give him standing to bring an action for retaliation under Labor Code §98.6. In opposition, Patterson argues that Amazon violated Labor code § 2802 (a) by failing to indemnify him for necessary expenditures incurred as a consequence of employment. (Opposition, p. 6.)

Labor Code

§2802 requires an employer to reimburse an employee for necessary expenses when it becomes aware that the employee has incurred an expense. "Once the employer has such knowledge, then it has the duty to exercise due diligence and take any and all reasonable steps to ensure that the employee is paid for the expense." (Stuart v. RadioShack Corp. (2009) 641 F.Supp.2d 901, 904.) Patterson argues that Amazon did not pay his outstanding expenses until October 2025,

after he commenced this action.

Patterson

has standing to bring his retaliation claim.

b.

There

is no triable issue of fact as to whether Patterson's request for reimbursement caused Amazon to fire him.

Amazon

submits evidence that it decided to terminate Patterson on March 12, when the Director of Prime Video Live Sports agreed with TERA's termination recommendation. (RSS, No. 59.) This occurred before Amazon requested repayment of Patterson's expenses on March 18, 2024, and Patterson requested clarification of Amazon's calculation. (RSS, No. 59.)

The burden

shifts to Patterson to show that his statement disputing the repayment demand caused his termination.

Assuming

that Patterson's request for clarification in the March 18, 2024, meeting was a qualifying request for reimbursement under Labor Code § 2802, Patterson does not submit admissible evidence that the request caused his termination. Patterson argues that Amazon's TERA record identifies several dates of termination: a February 22 separation recommendation, a March 12 business alignment, a March 17 disposition, and the March 18 termination. (RSS, No. 59.) He asserts that there is a triable issue of fact because the March 18 termination coincided with his request for clarification. However, Patterson does not dispute that the termination process began at those earlier meetings. He does not object to the Ship Declaration, ¶ 22, which establishes that Ship decided to initiate termination proceedings following the TERA report on or about February 22, 2024, nor did Patterson dispute the facts associated with these exhibits in his response to Amazon's separate statement. (Ship Declaration, ¶ 22; RSS, No. 57 [“Undisputed that TERA recommended separation based on its investigation and policy conclusions”].) This undisputed evidence demonstrates that Amazon initiated the termination procedure before Patterson requested reimbursement. If Patterson's termination were caused by his request for re-imbursement, the termination process would have begun after his request for reimbursement on March

18, 2024.

Therefore,

Patterson has not shown that there is a triable issue of fact as to whether his request for repayment caused Amazon to fire him.

Wrongful

Termination

The

parties do not dispute that Patterson's wrongful termination claim depends on his discrimination and/or retaliation claims. Since those claims fail, so does his wrongful termination claim.

Unlawful

Setoff/Withholding of Final Wages

Amazon

contends that it paid Patterson the waiting penalty for the one-day delay in sending him his final paycheck in that check. Patterson contends that he did not receive all the money he was owed until October 2025, when he received final reimbursement for outstanding expenses. (Patterson Decl., ¶ 20.) In reply, Amazon argues that the issue is moot because they made the payment and no expenses remain unpaid.

Patterson's

assertion that expenses were outstanding falls under Labor Code § 2303. Some labor code claims carry waiting time penalties that could be awarded even after an employer has paid the money owed, but Labor Code § 2802, pertaining to unpaid expenses, does not. It only authorizes interest in a Court award or Division of Labor Standards Enforcement award. (See Labor Code § 2802(b).) It is undisputed that there is no court award or division of labor standards enforcement award in this case.

Patterson's

claim for withholding is therefore moot. It is undisputed that Amazon has paid the outstanding expense and that there is no underlying award that would authorize the recovery of interest.

Punitive

Damages

Since

there is no triable issue of fact on any of Patterson's claims, there is also no triable issue on punitive damages.

Motion

to Seal

Amazon

moves to seal Exhibits D-R in support of its motion for summary judgment. Patterson objects because some of the information is available in other places in the public record and the request is overbroad. Patterson makes a decent point but that doesn't mean that the document doesn't merit protection overall. Motion to Seal is GRANTED.

Conclusion

The Court

would like to emphasize that its holding on this motion does not constitute a judgment on the allegedly fraudulent nature of Patterson's expense reports. The Court's opinion is limited to the questions before it, namely, whether there is a triable issue as to Patterson's claims for discrimination, retaliation, and withholding.

The Court

has determined that there is no factual dispute in this case. Therefore, Amazon's Motion for Summary Judgment is GRANTED.